

Hon Grace Kpaan Superintendent V Brig Gen Martin Johnson Sergeant At Arms of the Honorable House of Representatives

In the Honorable Supreme Court of the Republic of Liberia
Sitting in its October Term, A.D. 2015

Present: His Honor: Francis S. Korkpor, Sr.....Chief Justice
Present: His Honor: Kabineh M. Ja'neh.....Associate Justice
Present: Her Honor: Jamesetta H. WolokolieAssociate Justice
Present: His Honor: Philip A. Z. Banks, IIIAssociate Justice
Present: Her Honor: Sie-A-Nyene G. Yuoh.....Associate Justice

Hon. Grace Kpaan, Superintendent of Montserrado County, of the City of
MonroviaPETITIONER VERSUS

Brig. Gen. Martin Johnson, Sergeant-At-Arms of the Honorable House of
Representatives of the Republic of Liberia, The Hon. House of
Representatives, R.L, represented by its Speaker, Alex Tyler, Deputy
Speaker, Hans Barchue, any and all other authorized officers of that
Honorable Body, all of the City of Monrovia, Liberia
.....RESPONDENTS

PETITION FOR
A WRIT OF
PROHIBITION

Petition for writ of prohibition granted.

Heard: December 10, A.D. 2013

Decided: February 5, A.D.

2016.

Counsellor Betty Lamin- Blamo, Solicitor General, Ministry of Justice, in
association with Counsellor Pearl Brown Bull, appeared for the petitioner.

Counsellor Jonathan RAL Williams, In-House Counsel for the House of Representatives, appeared for the respondents

MR. JUSTICE JA'NEH delivered the opinion of the Court.

In establishing Liberia in 1847 as a "*Free, Sovereign and Independent State*" and adopting the Republic's Constitution as the ultimate governing instrument, the framers bequeathed certain *rights to* every person - natural and juridical. The geniuses of the 1847 Constitution (amended through May, 1972) assigned almost the whole of Article 1 thereof to statement of basic rights guaranteed to a person. Article 1, Section 8 of that organic instrument strictly prohibited dispossession of a person of his life, liberty, property or privilege save "*by judgment of his peers, or the law of the land*".

The Nation's devotion to the sanctity of basic human rights was not altered by the abrogation 138 (one hundred and thirty-eight) years later of the 1847 "*Independence Constitution*". Judging by its script, the adoption of the subsequent 1986 Liberian Constitution emboldened the fore-bearers' sanctification of the tenets of basic rights for the individual person. Evidently, not only fifteen (15) Articles at least of the new Constitution (1986), especially from Articles 11 to 25, have been dedicated by the framers to matters of rights preservation, but these rights have been christened as "*fundamental rights*". Chapter III (three) of the 1986 Constitution makes an interesting reading in this respect.

The sheer number of Articles of the Constitution (1986) on issues of rights appears to demonstrate the intent of the progenitors of our Organic Instrument to consecrate *"fundamental rights"* as a watershed for national life. No surprise therefore that the framers took to great length articulating not only the supremacy of the Constitution but also declaring, in no uncertain tone, that any law of this Republic, or act undertaken in Liberia tending to side step or trample upon any of the fundamental rights, to the extent of the inconsistency of said law with the Liberian Constitution, is *"void and of no legal effect"* in the words of the Constitution. See: LIB. CONST., ART. 2 (1986)

This *"regulator"* is a clarion manifestation that constitutional principles shall constitute the guiding philosophy for the formulation and execution of laws seeking to govern our body politic. The Constitution as the ultimate instrument of Liberia's governance scheme mandates that every law or body of rules enacted by the Legislature or any action the Executive Government embarks upon, shall conform to the tenets of fundamental rights enshrined in the Constitution. *"Due Process"* is one of those basic rights to which every person on the soil of the Republic of Liberia is entitled. Due process of law,

Referred to also as *"law of the land"*; is a critical mechanism intended primarily to prevent arbitrariness, oppression and anarchy. It must therefore be respected and protected at all times. The 1986 Constitution, essentially

borrowing from its predecessor organic instrument of 1847, has carefully couched strict prohibition of any conduct violating "*due process*" rights, by stating thus:

"No person shall be deprived of life, liberty, security of the person, property, privilege or any other right except as the outcome of a hearing judgment consistent with the provisions laid down in this Constitution and in accordance with due process of law..." LIB. CONST., ART.20(a) (1986).

Also, the Supreme Court of Liberia has affirmed time and again, literally without number, the supremacy of the Constitution and its binding effect on all authorities. These include the Legislature, the Executive and the Judiciary. See: *Honourable John S. Morlu, II, Auditor General, and General Auditing Commission v. The Honourable House of Senate of the National Legislature*, Supreme Court Opinion, March Term (2008); *Wolo v Wolo*, 5 LLR 423 (1937). It is settled in this jurisdiction that where any action is taken, or threatened to be taken by a department of the Liberian Government which interferes with constitutionally protected rights- the right to life, property, liberty and security of the person, privilege or any other right, said action or threatened move is a fit subject for judicial review. *Mary Brohv. The Hon. House of Representatives*, Supreme Court Opinion, October Term, (2014); *Archie Williams v. Christiana Tah, in her capacity as Minister of Justice & Attorney General, et al.* Supreme Court Opinion, October Term (2010). And as a constitutional duty, the Supreme Court shall declare every such action or move it finds to be not

the outcome of a hearing judgment as unconstitutional.

This is in further reliance on Article 2 of the Liberian Constitution (1986). Accordingly, this Court has consistently reiterated that not only is it vested with the constitutional authority and powers *"to declare any acts, treaties, statutes, decrees, customs and regulations"*, whether formulated by the Legislature or the Executive, found to be inconsistent with any provision of the Constitution, as

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"Unconstitutional", but that this Court will also never vacillate to perform its sacred constitutional duty pursuant to the power of "judicial review". *Vargas v. Reeves et al.*, 39 LLR 368 (1999); *Fofana v. Toe*, 39 LLR 25 (1998); *Edwin M. Snowe, Jr., Speaker of the House of Representatives, National Legislature v. Some Members of the House of Representatives*, Supreme Court Opinion, Special Session, January (2007).

In the case at bar, the petitioner, Madam Grace T. Kpaan, Montserrado County Superintendent, sought the issuance of the extra-ordinary writ of prohibition on account of the grave claims that her constitutional right to due process was violated, crushed and trampled by the respondent, the Honourable House of Representatives. The petitioner informed the Supreme Court that at the conclusion of the February 21, 2013 proceedings, same being the 9th day's sitting of the Plenary of the Fifty-Third Legislature, a motion, essentially constituting a ruling, was made by one of respondent's members. The said motion, according to the petition, was tried and carried by the overwhelming

majority of the Respondent membership declaring the petitioner, Grace Kpaan, not only guilty of legislative contempt but also that the petitioner was further in contravention of section 9 of the 2012 Fiscal Budget Laws relating to the management of the County Development Fund. The petition further averred that the Respondent House of Representatives, acting on this decision, ordered the petitioner incarcerated for 72 (seven-two) hours and commanded its Sergeant-At-Arms, Brigadier General Martin Johnson, to arrest the petitioner, Grace T. Kpaan and escort her to the Monrovia Central Prison to serve the sentence. This narrative by Petitioner Kpaan, as contained in her petition, is fairly well supported by the recorded account of the *"Legislative journal"*. Black's Law Dictionary (ninth edition) refers to legislative journal as that bulletin traditionally providing accounts of proceedings conducted by a legislative body.

It would seem that Petitioner Kpaan was worried and nervous by the action taken by the Respondent House of Representatives. Hence, she sought the aid of the Court by placing this petition before our distinguished colleague, Mr. Justice Philips A. Z. Banks, III, then presiding in Chambers of this Court.

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The petitioner therein prayed the Court for the issuance of the alternative Writ of prohibition to immediately halt the Respondent House of Representatives from trampling on Petitioner Kpaan's constitutional right to due process of law. The petitioner reminded the Supreme Court of its sacred duty to subject the respondent's action to judicial review, and if found to be violating of fundamental rights guaranteed under the Constitution, declare the said action as

unconstitutional.

This Court desires to observe here that the allegation made by Petitioner Kpaan that the Respondent House of Representatives disregarded and flouted her constitutional right is a serious accusation. As the ultimate protector of fundamental rights enshrined in the Liberian Constitution, the Supreme Court has consistently held that *"a claim of any violation of the Constitution by any person or authority, including the Legislative and the Executive Branches of the Government, is justiciable and [that] the Supreme Court is the proper forum for adjudicating and determining whether or not such violation has occurred. "Republic of Liberia v. The Leadership of the Liberia National Bar Association et al, 40 LLR 635, 650 (2001). Consistent with this settled position, and Petitioner Kpaan having duly filed before him a petition alleging serious breach on February 21, A.D. 2013, and considering the exigency attending to the situation, our distinguished colleague, His Honour Associate Justice Philip A. Z. B. Banks III, promptly on the self-same date, cited the parties to a scheduled conference on Monday, February 25, 2013 at the hour of 10:00 a.m. The Justice presiding in Chambers ordered, in the interim, a stay of 'all further actions and return the parties to status quo ante, including the release of the petitioner from any detention, pending the outcome of the conference."*

We feel urged to digress for a moment to note that the prohibition proceedings at bar were instituted against the Legislature, specifically the Respondent Honourable House of Representatives, through the Ministry of

Justice at the behest of Montserrado County Superintendent, an "*Executive Officer*" The respondent has questioned the legal propriety of the Ministry's action in this regard.

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This Court finds this as a matter of vital importance for our constitutional Democracy as the Ministry of Justice is the premier agency mandated by statute to represent, protect and defend the legal interests of the Liberian "*Government*. "*Judiciary* Law, Rev. Code, 17:22 (§ 22). In the face of imposition of this explicit statutory duty and obligation on the Ministry of Justice, its action in representing the petitioner in these prohibition proceedings against the conduct of the Legislature, a branch of the Liberian Government, clearly in favor of an officer of another Branch, the Executive Branch, raises a fundamental legal question whether the Ministry of Justice, by representing the legal interest of an officer of the Executive Branch of Government, in proceedings where the Legislative Branch of Government is an adverse party, has not breached its statutory authority, prescribed under sections 22.1 and 22.2 of the Executive Law.

While we feel called upon to comment later in this Opinion on the propriety of this undertaking as well as the Ministry's conduct in these proceedings within the context of the Justice Ministry's statutory and constitutional obligation, we also must state here, that Counsellor Pearl Brown Bull was hired as additional counsel for Petitioner Kpaan. We also note here that the Ministry of Justice and the petitioner's additional counsel filed two separate

briefs before this Court for and on behalf of the petitioner.

In order to provide a full picture of this case for the benefit of this Opinion, we have reproduced the petitioner's seven (7) count petition as follows:

"1. Petitioner says that she is a law abiding citizen of the Republic of Liberia, and holds a commission from the President of Liberia as Superintendent for Montserrado County.

2. That on February 19, 2013, Petitioner says that she received a letter from the Honourable House of Representative over the signature of Mildred N. Sayon, Chief Clerk, informing the Petitioner that she has been mandated by the Honourable House of Representative to appear before the Plenary on Thursday, February 21, 2013, before the Legislature to provide reasons why she should not be held in contempt, as more fully seen by a copy of the letter hereto attached.

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3. Petitioner says that she appeared before the Honourable Legislature as mandated but she was refused to be represented by counsel, which a right is granted under the Constitution of Liberia.

4. Petitioner also says that in the absence of being represented by counsel and not being given adequate opportunity to present her side of the matter, Petitioner says that she was denied due process of law as guaranteed under the Constitution of Liberia.

5. Petitioner further says that as Superintendent of Montserrado County, and as direct appointee of the President of the Republic of Liberia, the direct instruction to her by the Legislature to discharge some specific responsibilities is in direct violation of the concept of separation of powers as enshrined in the Constitution of Liberia.

6. That notwithstanding this violation, the Legislature in plenary has

resolved and ordered that petitioner be confined to the Monrovia Central Prison for 72 hours, and Petitioner is and or about to be taken to the said prison.

7 Petitioner says that contempt in the instant case is criminal in nature, and that being the case, she was entitled to a separate hearing at which she had the right to be represented by counsel to confront witnesses against her, to cross examine them, all of which she was denied and to be entitled to all of the rights under the constitution and laws of Liberia.

WHEREFORE AND IN VIEW OF THE FOREGOING, Petitioner prays this Honourable Court to Stay the implementation of the orders of the Honourable House of Representative and if Petitioner is already in prison, to order release her from jail, until Your Honour shall have heard and determined this matter, and to provide all other and further relief as in the judgment of this Honourable Court would be deemed just, legal and equitable.

Respectfully Submitted: Grace Kpaan, Superintendent for Montserrado County, Represented by and thru the Minister of Justice, the Assistant Minister of Justice for Litigation, the Deputy Minister of Justice and all attorneys in the Ministry of Justice.

Benedict F Sannoh/Deputy Minister of Justice:

Cllr. Augustine C Fayia/Assistant Minister of Justice..."

As already indicated, Mr. Justice Philip A. Z. B. Banks III, considering the Urgent need to provide a temporary relief, forthwith, ordered the parties returned to "status quo ante" and that the petitioner be released from any detention pending the result of a conference already scheduled. It would appear that efforts at an amicable resolution of the controversy proved futile.

As a result of the parties' inability to resolve their differences and the further consideration of the grave constitutional question set forth in petitioner's petition, the Chambers Justice, on February 26, A.D. 2013, ordered the alternative writ of prohibition issued. The provisional writ as issued contained a mandate to halt the implementation of the imprisonment orders issued by the Respondent House of Representatives and also to release Petitioner Grace C. Kpaan, if she were already incarcerated. We hasten to state here that this was simply an interim order properly issued by the Chambers Justice pending a full judicial review by the Full Court.

This Court also desires to remark, at least *en passant*, that though the citation of February 21, A.D. 2013, was duly served on the Respondent August Body, evidenced by the Marshall's Returns to the writ of prohibition, which contained the Supreme Court's orders already referenced, the Respondent House of Representatives continued a seemingly vigorous pursuit to arrest, detain and incarcerate Petitioner Superintendent Grace Tee Kpaan at the Monrovia Central Prison. We find such conduct rather inimical to a fledgling democracy such as ours.

Be that as it may, the Respondent, as directed in the alternative writ of prohibition, filed an eighteen (18) count returns to petitioner's petition. We deem it appropriate and therefore hereunder quote said Returns as follows:

'AND NOW COME THE RESPONDENTS of the House of Representatives of the 53rd Legislature, one of the three co-equal and coordinate branches of the Liberian Government in the above entitled cause of action and

say that as a mark of respect for the Liberian Constitution and the rule of law that Your Honors deny and dismiss the unmeritorious petition for a Writ of Prohibition as the issue of prohibition against the legislature is not justiciable before the Supreme Court of Liberia and sheweth the following factual and legal reasons to wit:

- 1. That the framers of both the 1847 and the 1986 Constitutions of the Republic of Liberia did not intend that the ordinary and essential power of the judiciary to extend the writ of prohibition to annulling an act of the Liberian Legislature.*
- 2. That it is the business of the Judiciary to interpret the laws and scan the authority of the law givers/makers.*

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- 3. That the judiciary issuance of a Writ of Prohibition against a co-equal branch of the Liberian Government would subvert the very constitution the Justices are sworn to respect and protect and are bound by as it is the law of the land.*
- 4. That the Plenary power of the Legislature is reserved by the people for their immediate use and to redress an infringement of their rights by their Representatives.*
- 5. That the absolute sovereign power of the people resides in themselves to correct abuses in legislation by instructing their Representatives to repeal the obnoxious Act or impeach any officer of the Liberian Government.*
- 6. Respondents contend and aver that the caption of the case same being flawed in that Brigadier General Mattie Johnson, Sergeant of Arms of the Honourable House of Representative, a commissioned officer in the Arm Forces of Liberia therefore working under the Commander In Chief, the President of the Republic of Liberia can only be sued and brought to court with the permission of the Chief Executive, the President of the*

Republic of Liberia. Respondents say that this not having being done makes the entire petition for writ of prohibition a subject fit for dismissal and this respondent so pray. Attached hereto, is a photocopy of the Commissioned of Brigadier General Mattie T Johnson to form a cogent part of respondents' return.

- 7 That the Minister of Justice, Attorney General, Republic of Liberia violated the 1986 Constitution of the Republic of Liberia and Chapter 22, Section 21 of the Executive law by filing for a writ of prohibition for a private citizen against another branch of government, the Honourable House of Representatives. This makes the said petition a subject fit for dismissal as the Minister of Justice lacks standing to sue. Respondents most respectfully pray that Your Honors take judicial notice of the Executive Law with specific reference to Chapter 22, Ministry of Justice.*
- 8. That as to the entire petition, same is dismissible and ought to be dismissed because it is a product of conflict of interest in that it is filed by the Ministry of Justice of the Republic of Liberia which is the statutory legal counsel of all branches and departments of the Government including the Respondents, Respondents say that to entertain the Petition filed by the Ministry of Justice in violation of its statutory obligations and the Code for the Moral and Ethical Conduct of Lawyers in Liberia would be an affront to public policy, the principles of separation of powers and also establish a bad precedent that is clearly avoidable and unnecessary.*
- 9. Further to Count One (1) of this Returns, Respondents say that the Statute Creating the Ministry of Justice, which is Chapter 22 of the Executive Law - Title 12 of the Liberian Code of Laws Revised states the functions of the Ministry of Justice as, inter alia, to "conduct, prosecute, or defend all suits and proceedings in the courts in which the Republic of Liberia or any officer thereof, as to such officer, is a party or may be interested." The laws of Liberia,*

including the Code for the Moral and Ethical Conduct of Lawyers as well as the recently enacted Code of Conduct for Public Servants expressly prohibit conflict of interest, Respondents therefore submit that the Ministry of Justice may not represent a party against Respondents and/or use the funds and other resources of the Liberian people to conduct or prosecute a cause against the elected representatives of the Liberian people. To the extent that the Petitioner's Petition was signed entirely by the Ministry of Justice which is disqualified to have prepared, signed and filed such Petition, the signature and verification of the Petition by the Ministry of Justice is null and void ad initio, and the Petition is therefore not valid since it was not duly signed, verified and filed in keeping with law. Same should therefore be stricken and the cause dismissed as a matter of law and sound public policy.

- 10. That as to Count One (1) of the Petitioner's petition, Respondents say they are without information to confirm or deny the claim of Petitioner as being law abiding, but that in any event the entire averment in the count is irrelevant.*
- 11. That as to Count Two (2) of the Petitioner's petition, Respondents confirm the February 19, 2013 letter referred to in the said Count (2) of the Petition, but say that the letter was a follow-up to previous communications served the Petitioner for her to appear before the Respondents in connection with a drawn-out hearing that commenced in January 2013.*
- 12. Respondents respectfully request Your Honors to take judicial notice of the content of the referenced February 19, 2013 letter which categorically stated that it constituted "the last" invitation to the Petitioner and that the said letter was "to remind" the Petitioner "of making sure of the full execution of the Plenary's mandate" given her on previous occasions, as can also be fully seen from*

the attached copies of (1) earlier four (4) letters (dated, January 17, 2013, January 22, 2013, and February 5, 2013) sent to Petitioner for her appearance before the Honourable House of Representatives and (2) journals/minutes of the Honourable House of Representatives dated January 17, 2013, January 22, 2013 February 4, 2013 and February 21, 2013.

13. *That as to Count Three (3) of the Petitioner's Petition, Respondents affirm and reaffirm the admission of the Petitioner that she did appear before the Honourable House of Representatives, which appearance upon prior written notice satisfy due process and provided Petitioner requisite opportunity to be heard before any conclusion or judgment regarding whether or not her conduct constituted contempt of the House of Representatives.*

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14. *Further to Count Six (6) of these Respondents' Returns and Count Three (3) of the Petitioner's petition, Respondents deny the false assertion of Petitioner that she was not assisted by counsel. Respondents say that it never at any time throughout the long investigative hearing prevented the Petitioner from being assisted and advised by counsel, except to insist that only the Petitioner (and not her counsel or any other person) who had been duly sworn would answer under oath all questions posed to her. Your Honour is respectfully requested to take judicial notice of the fact that all Parliament) and even in judicial proceedings are the ones to answer questions on the direct or during cross examination.*
15. *That as to Count Four (4) of the Petitioner's Petition, Respondents categorically deny all the averments therein, and reaffirm and restate Counts 1-7 of these Returns in denying the said Count Four (4).*

16. *That as to Count Five (5) of the Petitioner's petition, Respondents deny the allegations contained therein, and further say that the assertion of the Petitioner that she is not in any way answerable to the Honourable House of Representatives is an unfortunate misunderstanding of basic laws, including the well-recognized oversight authority of the Legislature. Further, Respondent says Section 2 of the Public Financial Management Law of Liberia states under Principles (A) of Accountability that all Members of the Executive are accountable to the Legislature for the way they carry out their responsibilities in respect to the Management of public finances.*

17. *That as to Count Six (6) of the Petitioner's petition, Respondents affirm and confirm that they did find the Petitioner in contempt of the Legislature following proper hearing that complied with due process and specifically Articles 44 of the Constitution of Liberia.*

18. *That as to Count Seven (7) of the Petitioner's petition, Respondents deny the allegations contained therein. Respondents say that Article 44 of the Liberian Constitution is clear that contempt of the legislature "may be punished by the House Concerned." The key words in Article 44 are PUNISH" and 'BY'; Punishment includes fines and imprisonment. The term, "BY; means that the hearing and the punishment is by the House concerned. The conduct of the hearing and the detention order of the petitioner was therefore consistent with due process and the laws controlling and are therefore valid and enforceable.*

Respondents deny all and singular the allegations of facts and laws contained in the Petitioner's Returns which have not been made a subject of special traversal herein.

WHEREFORE, AND IN VIEW OF THE FOREGOING, Respondents most respectfully pray Your Honors and this Honourable Court.

- A. To ignore, deny and dismiss the Petitioner's Petition;
- B. To affirm and declare the validity and enforceability of the valid detention order made against the Petitioner by the Respondents as a result of extensive hearings that complied with due process of law; and;
- C To Grant unto Respondents any and all further relief this Court may deem just and equitable under the circumstance.

Respectfully submitted;

The above named Respondents by and thru Their Legal Counsels: Jonathan Williams, Professor & Counsellor-At-Law, T Negbalee Warner, Professor & Counsel/or-At-Law, Laveli Supuwood, Professor & Counsellor-At-Law..."

The records further reveal that notwithstanding these challenges, the Chambers Justice successfully convened the scheduled conference on February 26, A.D. 2013. All the parties, including the Respondent House of Representatives, attended. Mr. Justice Banks determined that the contentions presented by the parties beget questions of constitutional nature.

Consequently, and as it is the law in this jurisdiction that "[the Supreme Court shall be the final arbiter of constitutional issues..." [Lib. Const. Art. 66 (1986)], and that matters involving constitutional questions are exclusively cognizable before and determinable only by the Supreme Court sitting *en banc*, the Chambers Justice ordered the Clerk to forward

the case to the Full Bench for disposition. See: 1 LCL Revised, § 16.26, Civil Procedure Law, Republic of Liberia, by and thru the Liberia Anti-Corruption Commission (LA CC) v. His Honour Yussif D. Kaba, Munah Sieh et al., Supreme Court Opinion, October Term (2014); Inter Burgo Industrial Company v. The Ministry of Agriculture et al., Supreme Court Opinion, October Term 2008; Ayad v. Dennis, 23 LLR 165, 166 (1974); Goodman Shipping and Stevedoring Corporation v. National Port Authority, 37 LLR 545, 548 (1994); Garlawolo et al. v. Elections Commission et al., 41 LLR 377, 383 (2003).

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From a careful review of the Petition, the Returns filed thereto, and also in Consideration of the briefs submitted to this Court by counsels representing the parties, the parties have submitted and urged this Court to address a number of important issues. Those they have proposed as dispositive of this controversy include the below listed:

- (1) Whether the Supreme Court of Liberia is vested with the constitutional authority to prohibit and restrain the action (s) of any Branch of Government, without limitation, which violate a provision of the Constitution of the Republic of Liberia? Said otherwise, whether or not the issuance of the writ of prohibition by the Supreme Court of Liberia against a separate, equal but coordinate branch of government, as provided for under structure of the state, found in chapter 1, Articles 1, 2 and 3 of the 1986 Constitution of the Republic of Liberia, violate the constitutional doctrine of separation of power? This question can also be stated as whether the framers of the 1986 Constitution of the

Republic intended that the ordinary and essential powers of the Judiciary shall extend to the prohibition or annulling of an act of the plenary of the Legislature of the Republic of Liberia?

- (2) Whether section 9 of the 2012/2013 Budget Act is constitutional when it provides for the Chair of the Legislative Caucus of the County to chair the County Council, appoint the Chair of the Project Management Committee, and exercise powers in the administration of funds allocated to the County under the 2012/2013 Budget?
- (3) Can the Legislature, in the exercise of its contempt power, adjudge a person in contempt without the issuance of a citation for contempt, stating therein grounds that constitute the contempt, and void of conducting a hearing consistent with due process of law?
- (4) Whether the Minister of Justice, Attorney-General of Liberia, violated the 1986 Constitution of the Republic of Liberia and chapter 22, section 21 of the Executive Law, by filing a petition seeking a writ of prohibition against the Legislature, in the instance, the House of Representatives, for and on behalf of an executive officer, Hon. Grace Kpaan, Superintendent of Montserrado County?
- (5) Whether the claim by Petitioner Superintendent Grace Kpaan of violation by the Honourable House of Representatives of her constitutional rights of due process is justiciable before the Supreme Court of Liberia?
- (6) Whether a statutory provision, a creature of the Legislature, may be interpreted or read to invade upon, or amend the exclusive Legislative power of contempt?

- (7) Whether or not the Sergeant-at-Arm, Brigadier General, Armed Forces of Liberia, a member of the Executive Branch of Government, may be brought under the jurisdiction of the Judiciary without first being

disrobed?

- (8) Whether or not the framers of the 1986 Constitution provided for judicial and quasi-judicial contempt?
- (9) Whether under the facts and circumstances of the instant case, prohibition will lie?

As can be seen, the parties have called our attention to significant legal Questions. Some of them clearly urge judicial examination of questions of constitutional interplay amongst the three separate, equal and coordinate branches of the Government: Executive, Legislative and Judicial. One of such issues presented by the parties brings to fore the constitutionality of Section 9 of the 2012/2013 Budget Act.

Important as these issues appear to be, the disposition of the instant prohibition proceedings does not appear to the mind of this Court, to be contingent on attending to all these issues raised by the parties.

Not only that we are guided by the legal requirement that constitutional questions must be squarely raised, and not collaterally, but also by established principle of law in this jurisdiction that unless dealing with a constitutional query is absolutely necessary to the final disposition of a matter, the Supreme Court would ordinarily decline to probe such a question. See: *IN RE: Morris M. Dukulyv. The National Elections Commission*, Supreme Court Opinion, Special Session, September 21, 2005; *Liberia Bank for Development & Investment v. Lancelot Holder*, 29 LLR 310, 314 (1981).

Accordingly, and consistent with this legal tradition, we will limit ourselves

to entertain and pass only upon the below listed questions which we have determined to be germane to the disposition of this case. They are:

1. Is the Supreme Court of Liberia vested with the constitutional authority to prohibit and restrain the action (s) of any Branch of Government, without limitation, which violate a provision of the Constitution of the Republic of Liberia?

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Or, whether or not the issuance of the writ of prohibition by the Supreme Court of Liberia against a separate, equal but coordinate branch of government, as provided for under structure of the state, found in chapter 1, Articles 1, 2 and 3 of the 1986 Constitution of the Republic of Liberia, violates the constitutional doctrine of separation of powers? This question can also be stated as whether the framers of the 1986 Constitution of the Republic intended that the ordinary and essential powers of the Judiciary shall extend to the prohibition or annulling of an act of the plenary of the Legislature of the Republic of Liberia?

2. Whether the exercise of the powers of contempt, constitutionally vested in the Legislature, is subject to limitations and qualifications, or the exercise of contempt power is a matter of legislative discretion? Or, what may be deemed as a proper exercise of legislative contempt?
3. Whether the Justice Ministry may represent an officer of the Executive Branch in a suit to prohibit another branch of Government?
4. Whether in light of the facts and circumstances in the instant case, prohibition will lie?

We now consider the first question stated herein above, which is, whether the Supreme Court of Liberia is constitutionally vested with the authority to prohibit and restrain the action (s) of any Branch of Government without limitation, which action violates a provision of the Constitution of the Republic of

Liberia? Counsels for Petitioner Grace Kpaan, both in their briefs and during oral arguments before this Court, have robustly contended that the Supreme Court is vested with the constitutional authority to adjudicate violation of any and all rights granted to an individual person under our organic instrument. In the proper exercise of that authority, according to Petitioner's lawyers, the Supreme Court can prohibit and restrain the actions of any institution of the Liberian Government, to include both the Executive and Legislative Branches, it determines offensive to the rights and privileges of the individual protected by the Constitution. The two briefs therefore urged the Supreme Court not only to restrain, but in addition, to also declare the Respondents' actions as unconstitutional. In urging the Supreme Court to so act, counsels have primarily Respondent ordered the Sergeant-At-Arms to administer the oath or affirmation for the conduct of its hearing. The hearing thereafter commenced with the Honourable Speaker making the following remarks:

"Hon. Superintendent, as you are aware, this is a communication of the hearing of February 17, 2013. You were mandated to carry on a mandate by plenary as communicated to you by the Chief Clerk. We will want you to proceed as to the implementation. And as usual when addressing this body, you address the Chair, the Deputy and the Honourable Members before you make a statement and/or answer a question. My first question to you is have you proceeded by implementing plenary decision?"

It is noteworthy that the oath having been administered, the Journal reveals that the petitioner reminded the Respondent House of her constitutional right to legal representation in all proceedings by stating on the minutes as quoted:

"Hon Speaker, Hon. Deputy Speaker, Hon Members of the House, yes, sir. May I also plead with your Body as per Article 20 of the Constitution of Liberia which gives every citizen the right to legal counsel in any case at every stage of a proceeding?"

The Honourable Speaker however saw it rather differently. Responding to the petitioner's insistence to exercise her constitutional right to representation by legal counsel, stated as quoted:

"Madam Superintendent, the right to a legal counsel has not been denied you. And that is why your legal counsel is allowed in these sacred Chambers of the House of Representatives to guide you as you proceed."

Clearly, the 9th Day's Journal indicates that said day's proceedings were marked by rigorous exchanges of questions from the respondent membership with demanded answers from the petitioner. At the conclusion of this hectic exercise, the Respondent House convened in Executive Session and thereafter reconvened in open session a member of the Respondent House of Representatives at this stage urged his colleagues in the following words:

"Mr. Speaker, Mr. Deputy Speaker, Fellow Colleagues. According to the Organic Law of Liberia, meaning the Constitution of Liberia, Article 44, it says and I read: "Contempt of the Legislature shall consist of actions which obstruct the

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Legislative functions or which obstruct or impede members or officers of the Legislature in the discharge of their legislative duty and may be punished by the House concerned by reasonable sanctions after hearing consistent with due process of law. "

Further mobilizing his colleagues to action, the Representative continued:

"Having listened to the witness and according to our Ru/es, Section 4.1, the witness is in total violation of our Rules and the Constitution of Liberia. I move, if I can be seconded, that based upon these violations, the witness be sent to jail for the period of 30 (thirty).....

Following its modification from 30 (thirty) days to 72 (seventy-two) hours,

the motion was carried with the Honourable Speaker announcing respondent's decision as follows:

"Honourable Ladies and Gentlemen, with the passage of the motion, the Hon. Superintendent is to be incarcerated for 72 hours at the Monrovia Central Prison as of today for legislative contempt for violation of Article 44 of the Liberian Constitution and Section 9 of the Budget Law of the Republic of Liberia. Madam Chief Clerk, you are hereby mandated to prepare all necessary documents in this regard. AND 17 15 HEREBY SO ORDERED."

We have painstakingly reviewed the proceedings conducted by the Respondent House of Representatives on February 19, A.D. 2013. It is from those exchanges the Respondent rendered a ruling declaring Petitioner Grace T. Kpaan guilty of contempt.

We find the process not in compliance with the law of the land. This Court, in a litany of its Opinions, has unmistakably and unambiguously pronounced that either of the two Chambers of the Legislature may, in the exercise of the constitutionally conferred power of contempt, attach a party in legislative contempt on account of obstruction of, or impediment to legislative functions, and therefor impose reasonable sanction.

This may include imposition of penalty of fines or imprisonment or both. While it is a settled question that the Legislature is indeed and unquestionably vested with the power of contempt, the exercise of said power is clearly not lodged in discretion, nor is the exercise of this power left to the impulses and caprices of the Legislature. To the contrary, the framers of our organic law

placed strict constitutional confines and limits on the exercise of legislative contempt. This is perhaps the solid reason why Article 44 expressly insists in forceful language that sanction pursuant to legislative contempt be applied only after the conduct of a hearing conforming to the principles of due process of law. Article 44 of the Liberian Constitution, the granter of the power of contempt to the Legislature, also expressly ordains that sanction on account of legislative contempt would apply only "after hearing consistent with due process of law. "

This remains and always has been the law in this Republic. This Court, speaking through Mr. Justice Banks in *Broh*, cited herein earlier, said it this way: *"It is fallacious for one to think that it is permissible to mostly comply with due process; [to the contrary], to be considered lawful, due process of law must be fully complied with. This Court envisions no circumstance that would warrant the suspension of an iota of one's due process rights."*

It therefore follows, in the considered opinion of this Court, that full compliance with the cardinal tenets of due process is indeed the dictate of our Constitution, the fundamental law. Article 74 of the Liberian Constitution makes it mandatory that disposition of matters of contempt and the penalties imposed therefor *"shall conform to the provisions on Fundamental Rights laid down in this Constitution."*

This is further reinforced by the broad restriction expressed in the language of Article 38 to the effect that "...All *rules* (which include actions in the considered view of this Court) *adopted by the Legislature shall conform to the requirements of due process of law laid down in this Constitution.*

Accordingly, this Court is compelled to declare that the Petitioner Grace T. Kpaan's constitutional right to due process of law, guaranteed by Article 20(a) and contemplated under Article 44, not exclusive of the right to counsel (imposed under Article 21 (c) and (i), were not observed.

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The Respondent House of Representatives, by disallowing Counsellor Pearl Brown-Bull, petitioner's legal counsel, from making statements in defense of her client, Petitioner Grace T. Kpaan, at least, or by restricting counsel from speaking openly and unrestrictedly to the quasi-judicial sitting in defense of her client, the accused, stripped Grace T. Kpaan of her fundamental right. Proceedings conducted under circumstances tending not to afford an accused, as in the instant, full and adequate opportunity of legal representation, a decision concluded therefrom adjudging an accused guilty of legislative contempt as well as the sanction imposed as a result, are untenable. It follows, without the necessity of restatement, that the sanction of imprisonment imposed on Petitioner Kpaan for the stated reason of legislative contempt, not having been the outcome of a hearing conforming to the

fundamental principles of due process of law, is unconstitutional, and as it stands, rendered unenforceable. That decision and judgment, for all intents and purposes, are hereby set aside.

As noted earlier in this Opinion, counsels for Respondent House of Representatives, Professors & Counsellors-At-Law, Jonathan Williams, T. Negbalee Warner, and James Laveli Supuwood, filed returns to the petition as ordered by our esteemed Colleague, Mr. Justice Banks in the alternative writ of prohibition. In said returns, the lawyers claimed that *"the Minister of Justice & Attorney General, violated the 1986 Constitution of the Republic of Liberia and Chapter 22, Section 21 of the Executive law by filing [a petition] for a writ of prohibition for a private citizen against another branch of government, the Honourable House of Representatives; [and as such], [t]he Minister of Justice lacks standing to sue."* Counsels' grave claim has triggered question number three as to whether the Justice Ministry's action in representing the legal interest of Superintendent Kpaan, an officer of the Executive Branch of Government, in proceedings against other Co-equal Branch of the Liberian Government, is supported by law. Said differently, is it a violation of its statutory mandate for the Justice Ministry to represent the legal interest of an officer of the Executive Branch in proceedings adverse to the Legislature, a coequal Branch of the Liberian Government?

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A review of the Executive Law shows that the Ministry of Justice was established *"in the Executive Branch of the Government."*[ouremphasis].

See:

Executive Law, Section 22.1, LCLR. The statutory duty stipulated under Section 22.2 LCLR is (a) to *':Prosecute, or defend all suits and proceedings in the courts in which the Republic of Liberia or any officer thereof, as to such officer, is a party or may be interested.* '(c) *"Furnish opinions as to legal matters and render services requiring legal skill to the President and other agencies of the executive branch of the Government.'*; Executive Law, LCLR, 22.4 (a); *"Prepare and argue before the Supreme Court all cases to which the Government of Liberia or an officer thereof, as such officer, is a party, provided that the Minister of Justice may himself conduct any case if in his opinion the interest of the Government requires him to do so."*

From the plain meaning of the statute, one can see that the Ministry of Justice is clearly granted the statutory authority and mandated thereunder to represent the Government of the Republic of Liberia in prosecuting and defending the Government's legal interests. This, in our judgment, is a mandatory and conclusive legal obligation. Where the statute, as sections of the Executive Laws referenced above, imposes a duty on an agency to represent the *"Government of Liberia or any officer thereof, as such officer, is a party..."*, the agency, as Mr. Chief Justice Louis Arthur Grimes, speaking for the Court put it, becomes *"the officer of the law" "amenable to the laws for his conduct..."* "See:

Wiles v. Simpson, Secretary of State of Liberia, 8 LLR 365, 370 (1944).

Accordingly, where an officer of the Republic requires legal assistance to prosecute and/or defend an interest in the execution of his/her duty authorized under the law, as to that interest the Justice Ministry is duty-bound to represent that officer. This Court understands the word "*officer*" to include all those of the three branches constituting the "*Government*"

It is our considered Opinion, that the statutory duty of representation imposed on the Ministry of Justice for "*any officer of the Republic of Liberia*" could not have been intended by the Legislature to involve proceedings in which a branch of the "*Government*" is a party against an officer of the "*Government*":

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To argue that the Legislature, by vesting in the Ministry of Justice the authority of legal representation of "*Government*" included the authority to litigate against the Legislature, or any other branch of "*Government*" is symptomatic of absurdity. Such argument defies both the wording and spirit of the law.

It could never have been the intent of the Legislature to authorize the Ministry of Justice to represent the legal interest of any officer of one Branch of the Government of the Republic of Liberia against the legal interest of another branch of the same Government of the Republic. Such conclusion is tantamount to an indivisible unit as contemplated by law pursuing legal action against itself.

In our search to understanding who is an officer of the Republic of

Liberia, we turn to the Appointment Clause of the 1986 Constitution. Chapter VI, Article 5 (a& d thus :) of the Liberian Constitution provides thus: *"The President shall nominate and, with the consent of the Senate, appoint and commission, cabinet ministers, deputy. And assistant cabinet ministers, superintendents, other county officials and officials of other political sub divisions..."* As can be seen, our Constitution does not expressly mention the term *"officer."* So we turn to common law jurisdiction for guidance as is consistent with the Reception Statute and numerous Opinions of this Court.

The Appointment Clause of the United States Constitutions and American case laws where the term *"officer"* is mentioned, appear instructive. *"The President shall nominate, and by and with the Advice and Consent of the Senate, shall appoint Ambassadors, other public Ministers and Consuls, Judges of the Supreme Court, and all other Officers of the United States"* U.S. Const. Art. II § 2, cl.2.

Also in *Buckley v. Va/eo*, 424 U.S. 1, 125 (1976), the United States Supreme Court held that *"Officers of the United States"* as used in Art. II, include *"a// persons who can be said to hold an office under the government"*; that it is a term intended to have substantive meaning. Its fair import is that any appointee exercising authority pursuant to the laws of the United States is an *"Officer of the United States."*

Reverting to the issue at bar, it is clear that the Ministry of Justice is the

statutory institution specifically designated to represent the Government.

Its mandate is not confined to representation of only the Executive Branch of the Government. Its mandate extends to representation of the entire Government as a unit. This Court has seen nothing in the mandate, not even by a fleeting proposition that seeks to authorize or permit the Ministry of Justice to represent a component of that unit, the Government, as against another component of that same unit. But the material facts culled from the certified records, which are not in controversy, reveal that Respondent House of Representatives convened in an Executive Session and passed a motion. The motion approbated Respondent's decision to hold Montserrado County Superintendent, Grace T. Kpaan, in violation of section 9 of the 2012 Fiscal Budget Laws relating to the Management of the County Development Fund, thereby declaring the Executive Officer guilty of legislative contempt.

The records are devoid of any showing as to what triggered the involvement and participation of the Justice Ministry.

What we see is that shortly after the Respondent House of Representatives ordered its Clerk to issue a commitment to have petitioner incarcerated at the Monrovia Central Prison, the Justice Minister, Cllr. Benedict F. Sannoh, at the time Deputy Minister of Justice, and Assistant Minister of Justice for Litigation, Cllr Augustine C. Fayia, and "all attorneys in the Ministry of Justice, sought a petition for a writ of prohibition wherein they asserted that they were doing so in favor of Superintendent Grace T. Kpaan, named therein as petitioner, and also designating the Honourable House of

Representatives as respondent.

Also when the case was called for hearing, the Solicitor General of Liberia, Counsellor Betty Lamin- Blamo, appeared and announced representation for Petitioner Kpaan in association with Counsellor Pearl Brown Bull.

This Court accepts that Grace T. Petitioner Kpaan, then Superintendent of Montserrado County, was an executive appointee, whose appointment is mandated by the Constitution of Liberia.

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At the commencement of these proceedings, Kpaan served as executive head of Montserrado County.

By virtue thereof, she exercised authority pursuant to the laws of Liberia. Clearly, Petitioner Kpaan's functions and status at the time unarguably elevated her, by all intents and purposes, to the level of "*officer*" of the Republic of Liberia under the meaning of the Executive Law, Chapter 22, Section 22.1, and Liberian Code of Laws Revised. She was therefore an officer of the Republic of Liberia and entitled to the legal representation of the Ministry of Justice within the scope of duty and functions of the office of Superintendent of Montserrado County. The Petitioner was therefore not a '*private citizen*' as claimed by the Respondents.

Having said this, the unsettled question of law remains whether an officer of the Republic of Liberia, as in the instance of Superintendent of Montserrado County, can be represented by the Ministry of Justice in a suit involving

another branch of government — the House of Representatives - arising out of the Superintendent's conduct, performed within the scope of her official duty, but deemed punishable by the House of Representatives.

This is a matter of first impression yet to be fully addressed by this Court of last resort.

In our jurisdiction, the traditional scheme of things has been to have the Ministry of Justice act as legal counsel only for the executive branch of the "*Government*" and not the other two branches. But it cannot be a subject of any rational debate that part of the primary statutory duty of the Ministry of Justice to defend all of the Branches of the Government, including the Legislature. That is precisely why the Ministry of Justice is granted the right, as well as an imposed duty, expressly provided under section 5.64, Civil Procedure Law, Title 1, Revised Code of Law (1973), to "*intervene in support of the constitutionality of the statute*" whenever the constitutionality of an act of the Legislature affecting the public interest is drawn into question in any action to which the

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Republic of Liberia or an officer, agency or political subdivision thereof "*is not a party*": Section 5.64 requires the court in such matter to "*notify the Attorney General or a County, District, or Territorial Attorney*":

The Ministry of Justice, by virtue of its statutory function, carries the duty

to represent the "*Government*", including the Legislature, "*even where it is alleged with reasonable appearance of truth, that the challenged conduct seems untenable*"? Doesn't the Ministry often than not mount legal representation in matters involving the Executive Branch even in instances where the challenged conduct seems clearly difficult to defend?

As we see it, in the execution of its statutory duties, the Ministry of Justice is responsible to answer not only for the unconstitutional infractions of the executive but similarly also, as in this case, for the Legislature. Just as the Executive and its officers are clients of the Ministry of Justice, the Legislature and its officers as well as the Judiciary and its officers, are also clients of the Ministry of Justice. As clients, the Ministry of Justice owes fiduciary duty of loyalty and good faith dealings to all parties. Representing one client against another client in proceedings where the interests and legal positions of the two parties are adverse constitutes legally unacceptable conduct.

We therefore hold that the representation by the Ministry of Justice of a party in a matter where a co-equal branch of the Liberian Government is adversary is proper and permissible only where the Justice Ministry's participation in such a case is in support of the law, not of a party. The ministry of Justice, as the agency mandated to represent the entire Government of Liberia as one indivisible unit, should have properly commenced an "*In re proceeding*" or sought an intervention, consistent with section 5.64, cited herein above, to elucidate the law, and not a party to the proceeding.

The fourth and final question urging an answer is whether in the light of the facts and circumstances informing the instant case, prohibition will lie?

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This Court has held in a litany of cases that *"Prohibition is a special proceeding to obtain a writ ordering the respondent to refrain from further pursuing judicial action or proceeding specified therein.*" Section 16.21(3), Civil Procedure Law, Title 1, Revised Code of Law (1973).

The Supreme Court of Liberia has stated, time without number, that the writ of prohibition is used to stop a judicial or quasi-judicial body from proceeding when and where it has no jurisdiction, but is proceeding by wrong rule. *Green v. Tubman and Badio*, 30LLR, 823, 824 (1982); *Jitco Inc. v. Sesay et al*, 36LLR, 695, 701 (1990); *Commercial Fisheries Corporation v. Puk Yang*, 35LLR, 534, 538, (1988).

This Court has time and again commented on the meaning of the phrase *"rules different from those which ought to be observed at all times"*. *Kennedy and Johnson-Whisnant v. Goodridge and Hilton*, 33LLR, 398, 407 (1985); *SocietaLavori Porto Della Torre v. Hilton and Goelon*, 32LLR, 444, 446, (1984).

Most pertinent to consider in the matter at bar is the grave and exigent situation petitioner was faced with. Mr. Chief Justice Gbalazeh speaking to an analogous circumstance, in *Ashkar v. Badio et al*, commented thus: *"This compels us to find out whether or not there was such an act, or*

*pending act, which would have done serious hardship to the petitioner, and which was therefore such an emergency, urgency or unusual necessity for which prohibition would lie.."*Id.294,297 (1984).

We believe that the facts in the case before us compel the granting of the writ of prohibition in light of the unusual and urgent necessity for the relief sought by Petitioner Grace T. Kpaan.

After due consideration of the questions raised, review of, and reflection on the proceedings as detailed herein, we have arrived at the conclusion that the petition for writ of prohibition be, and same is hereby granted. Accordingly, the peremptory writ is ordered issued. This decision is without prejudice to the Respondent. AND IT SO ORDERED.